

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANDRES ARBOLEDA,

Plaintiff,

SUMMONS

Index #:

-against-

JURY TRIAL REQUESTED

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
and P.O. JOHN DOE nos. 1-3.

Basis for Venue: location of incident in
Bronx County. Plaintiff's residence in
Bronx County

Defendants.

-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: March 6, 2023



DAYAN LAW FIRM PLLC
Nicholas Dayan, Esq.
Attorney at Law
80-02 Kew Gardens Rd, Suite 902
Kew Gardens, New York, 11415
(718)-268-9400

Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
ONE CENTRE STREET
ROOM 1200
NEW YORK, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT
ONE POLICE PLAZA
NEW YORK, NY 10038

P.O. JOHN DOES (1-3)
ONE POLICE PLAZA
NEW YORK, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ANDRES ARBOLEDA,

Plaintiff,

VERIFIED COMPLAINT

Index #:

-against-

JURY TRIAL REQUESTED

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
and P.O. JOHN DOE nos. 1-3.Basis for Venue: location of incident in
in Bronx County. Plaintiff's residence in
Bronx County.

Defendants.

-----X

Plaintiff, by his attorney, NICHOLAS DAYAN Esq., as and for his Verified Complaint,
respectfully alleges, upon information and belief the following:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, Plaintiff ANDRES ARBOLEDA ("ANDRES") was and still is a resident of the County of Bronx, State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK ("City") was and still is a municipal corporation, duly organized and existing under and by virtue of the law of the State of New York.
3. That at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or municipal police department, duly organized and existing under and by virtue of the law of the State of New York.
4. That at all times hereinafter mentioned Defendant P.O. JOHN DOE nos. 1-3 were agents, servants, and/or employees of Defendants City and NYPD; upon information and belief were

members of the NYPD in the 46th Police Precinct; and were acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of their employment for Defendants City and NYPD.

5. That at all times hereinafter mentioned, Defendants City and NYPD employed police officers and others hereinafter mentioned in this Verified Complaint.
6. That at all times hereinafter mentioned, Defendants City and NYPD owned, maintained, supervised, managed, operated, inspected, and controlled the various police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the Verified Complaint.
7. That at all times hereinafter mentioned, all of the actions of the officers alleged herein were done within the scope and course of their employment with Defendants City and NYPD and under color of the state law.
8. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, Plaintiff served a Notice of Claim in writing upon the Defendant THE CITY OF NEW YORK. **(See Exhibit A, Notice of Claim Confirmation)**
9. That Plaintiff has filed a Notice of Claim with the New York City Comptroller and received confirmation of its receipt on October 17, 2022. **(See Exhibit A, Notice of Claim Confirmation).**
10. That a 50-h hearing was held.
11. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the Plaintiff.

STATEMENT OF FACTS

12. On or about September 17, 2022, at approximately 1:45 AM, Plaintiff was walking on the street by 1715 Walton Avenue, Bronx, New York, when three grown men exited an unmarked vehicle and called out “You Good!”
13. Frightened due to the time of night, location, and because Plaintiff had no idea that the three men (P.O. JOHN DOE nos. 1-3) were actually police officers, Plaintiff began to run away.
14. One and/or all of the three police officers (P.O. JOHN DOE nos. 1-3) called out “If you run you look guilty,” and immediately shot Plaintiff with a taser gun, causing Plaintiff to fall on the cement pavement, face first, busting and scraping his face and nose, fracturing his teeth, and breaking his toe.
15. That on or about September 17, 2022, after the violent encounter between Plaintiff and Defendants P.O. JOHN DOE nos. 1-3, the NYPD unlawfully and wrongfully arrested Plaintiff.
16. That Plaintiff did not violate any law, rule, or regulation, or act in any way that would justify the actions of the NYPD and Defendants P.O. JOHN DOE nos. 1-3 to stop, detain, and/or tase Plaintiff the way that they did and/or jeopardize Plaintiff’s life, safety, and wellbeing the way that they did.
17. Due to the negligent, reckless, and excessively forceful conduct of P.O. JOHN DOE nos. 1-3 and the NYPD, Plaintiff suffered a black eye, bruised his entire face including his lip, has cuts and scrapes all over his face and body, fractured his teeth, and broke his toe.
18. That the Defendants acted with a knowing, willful, wanton, maliciousness, gross, negligent, reckless, unlawful, unreasonable, and/or flagrant disregard of Plaintiff’s rights, privileges, welfare and wellbeing and are guilty of egregious and gross misconduct towards Plaintiff.

19. That by reason of the foregoing, Plaintiff has suffered extreme damages such as broken bones, oral surgery, bruising, scrapes, scarring, emotional distress, medical costs, lost wages, and tremendous levels of pain and suffering.

FIRST CAUSE OF ACITON
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION
UNDER NEW YORK STATE LAW

20. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

21. Defendants NYPD and City negligently hired, trained, supervised, and retained the Defendant officers; Defendant NYPD and City were careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.

22. As a result of this negligent hiring, training, supervision, overseeing, and retention, Plaintiff has suffered and continues to suffer damages.

SECOND CAUSE OF ACITON
MONELL CLAIM PURSUANT TO 42 USC SECTION 1981, 1983, 1985, 1986
AND RESPONDEAT SUPERIOR

23. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

24. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of Defendant NYPD.

25. Defendant NYPD, by their policy-making agents, servants and employers, authorized, sanctioned, and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

26. Defendants police officers (JOHN DOE nos. 1-3) used excessive force, and recklessly, and negligently caused Plaintiff's extreme damages and injuries by shooting Plaintiff with a taser.

27. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable force for arrest, notwithstanding the fact that no probable cause existed for Plaintiff's arrest and/or prosecution.
28. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature.

THIRD CAUSE OF ACITON
MUNICIPAL AND/OR GOVERNMENTALL LIABILITY

29. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
30. That Defendant NYPD, its employees, agents, and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to properly train its employees, agents, and/or servants in proper procedures to stop individuals and/or suspects and were otherwise reckless, careless, and negligent.
31. That as a result of the above referenced negligence and/or intentional conduct of the NYPD, Plaintiff was caused to sustain physical, emotional damages, and other damages such as lost wages and medical costs which exceeds the jurisdiction of all lower courts.

FOURTH CAUSE OF ACITON
EXCESSIVE FORCE

32. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
33. Plaintiff was not fleeing from the police on the above-described night of incident and did not take any action necessitating the use of excessive force by Defendant police officers JOHN DOE nos. 1-3.

34. Indeed, Defendants Police officers JOHN DOE nos. 1-3 could have called out that they were police officers rather than simply tasing Plaintiff. Defendant Police officers likewise could have followed Plaintiff rather than tasing him.
35. Instead, however, Defendant Police officers resorted to using excessive by tasing Plaintiff immediately after Plaintiff began running.
36. That as a result of the foregoing, Plaintiff has suffered emotional, physical injuries, pain and suffering and other damages such as lost wages and medical costs. Plaintiff demands judgment against the Defendants in the amount which exceeds the jurisdiction of all lower courts.

FIFTH CAUSE OF ACITON
INTENTIONAL AND/OR NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

37. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
38. Defendants intentionally and deliberately inflicted emotional distress upon Plaintiff; Defendants negligently inflicted emotional distress upon Plaintiff; by maliciously, negligently, recklessly, and/or intentionally tasing Plaintiff and causing him to fall on the rough cement pavement resulting in injuries to Plaintiff.

SIXTH CAUSE OF ACITON
NEGLIGENCE AND RESPONDEAT SUPERIOR

39. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
40. The aforesaid Defendants, without cause or provocation, negligently, carelessly, and recklessly stopped Plaintiff, detained, and arrested Plaintiff.
41. Defendants owed Plaintiff a duty to act reasonably, breached said duty, and proximately and actually caused Plaintiff's damages resulting from said breach.

42. The police officers JOHN DOE nos. 1-3 of the NYPD acted negligently in tasing Plaintiff in the way that they did, causing tremendous injury to Plaintiff that will diminish Plaintiff's quality of life, cause immeasurable pain and suffering, including but not limited to scar tissue on Plaintiff's face, and amount to expensive medical and/or dental treatment.
43. As employees of the NYPD and the City, JOHN DOE nos. 1-3 actions impose liability on the NYPD and the City for their negligent conduct and Plaintiff is entitled to full compensation for his damages and pain and suffering.

SEVENTH CAUSE OF ACITON
ASSAULT AND BATTERY

44. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
45. On or about September 17, 2022, Defendant police officers JOHN DOE nos. 1-3 attacked Plaintiff and tased Plaintiff without probable cause necessary for an arrest.
46. Indeed, even if probable cause for an arrest of Plaintiff existed, Defendant police officers JOHN DOE nos. 1-3 attack and tasing of Plaintiff constituted an assault and battery, causing Plaintiff injuries and damages of a physical, emotional, and psychological degree.
47. Defendant police officers JOHN DOE nos. 1-3 attack on Plaintiff was not privileged and was without provocation.
48. The assault and battery by police officers JOHN DOE nos. 1-3 was done intentionally, maliciously, and with wanton cruelty entitling Plaintiff to both compensatory damages and punitive damages.
49. Police officers JOHN DOE nos. 1-3 assaulted and battered Plaintiff in the course of their employment as NYPD Police Officers and in furtherance of their employment as police officers for the purpose of arresting Plaintiff without necessary probable cause. Accordingly,

Defendants NYPD and City are liable for said assault and battery as well as police officers

JOHN DOE nos. 1-3.

EIGHTH CAUSE OF ACTION
PUNITIVE DAMAGES

50. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

51. The acts, conduct, and behavior of the Defendants warrant an award of punitive damages against Defendants and in the favor of Plaintiff.

As a result of Defendants' actions and/or inactions, Plaintiff suffered damages.

WHEREFORE, Plaintiff respectfully demands judgment against Defendants, and each of them, on all of the foregoing causes of action in an amount equal to or greater than \$500,000.00, an amount to be determined at trial in the form of compensatory damages for Plaintiff's pain and suffering, loss of enjoyment of life, economic loss, medical expenses, loss of wages, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined at trial and by the trier of fact, together with attorney's fees, costs, and disbursements of this action.

Dated: March 6, 2023



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Attorney at Law
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Kew Gardens, New York, 11415
nicholasdayan@lawdayan.com
(718)-268-9400

VERIFICATION

STATE OF NEW YORK)

) ss.:

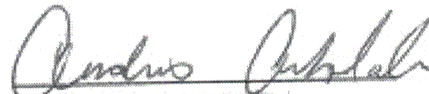
COUNTY OF BRONX)

RE: ANDRES ARBOLEDA v. THE CITY OF NEW YORK, the NEW YORK
POLICE DEPARTMENT, P.O. JOHN DOE nos. 1-3

Index #:

ANDRES ARBOLEDA, being duly sworn deposes and says:

Deponent is a Plaintiff in the within action; he has read the foregoing and attached **Verified Complaint** knows the contents thereof and the same is true to deponent's own knowledge, except as to the matters herein stated to be alleged upon information and belief and as to those matters, she believes them to be true.


ANDRES ARBOLEDA

Sworn to before me this 3rd
day of MARCH, 2023



NOTARY PUBLIC

